

3.	25CV1486	CRETE CRUSH LLC VS. AM DEVELOPMENT, INC ET AL
MOTION TO BE RELIEVED		

Counsel for AM Development, Inc. and Adam Murray move the Court for an order to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362.

A declaration on Judicial Council Form MC-052 accompanies the motion, as required by California Rules of Court, Rule 3.1362, stating that the clients have failed to cooperate with counsel regarding outstanding balances for legal fees and costs.

Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362 allow an attorney to withdraw after notice to the client. Proof of service of the motion on the Defendants at their last known address and on counsel for Plaintiff was filed on April 1, 2026.

A Case Management Conference is currently scheduled for August 11, 2026. The court will need an amended order in compliance with California Rules of Court, Rule 3.1362(e).

TENTATIVE RULING #3: ABSENT OBJECTION, THE MOTION IS GRANTED. COUNSEL IS DIRECTED TO SERVE A COPY OF THE SIGNED ORDER (FORM MC-053) ON THE CLIENT AND ALL PARTIES THAT HAVE APPEARED IN THE CASE IN ACCORDANCE WITH CALIFORNIA RULES OF COURT, RULE 3.1362(e).

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4.	25CV2156	LINKED HOME LOANS, LLC VS. PAULA HARVEY
DEEM REQUESTS FOR ADMISSIONS 1-25 ADMITTED AND SANCTIONS		

Motion to Deem Admitted Matters Specified in Request for Admissions

On December 12, 2025, Plaintiff served a Request for Admissions (RFA”) on Defendant as part of discovery in this lawsuit. Defendant returned responses with a caption from another case on January 15, 2026. Defendant retained counsel who provided revised responses by email on January 16, 2026. Plaintiff did not contact counsel Defendant at any time in any manner other than via email. Plaintiff has filed this motion seeking to have the matters specified in the RFA deemed admitted. Defendant opposes the motion maintaining responses were provided and/or that any defects in the responses be excused on the grounds of inadvertence, mistake and excusable neglect, pursuant to Code of Civil Procedure § 2033.280(a)(2).²

VERIFICATION

As to the verification of the proposed responses, Defendant cites case law holding that “[u]nsworn responses are tantamount to no responses at all. However, the case of *Allen-Pac., Ltd. v. Superior Ct.*, 57 Cal. App. 4th 1546 addressed a discovery response that was unsigned. In *Melendrez v. Superior Ct.*, 215 Cal. App. 4th 1343, (2013) a response on behalf of a corporation was signed by counsel, which did not meet the statutory requirement that the RFA response be signed by an officer or an agent of the corporation. Neither case mandates the rejection of Plaintiff’s personal signature under penalty of perjury on the proposed RFA responses. Plaintiff was pro per when the responses were initially drafted, likely leading to errors in correcting the caption, and can be presumed to have reviewed the responses. The objection to the date of the verification and that it was the same verification is misplaced. There is no basis for the court to conclude the verification is defective because of errors in the caption or that it needed to be resigned for such reason. The court also rejects the method of service as a basis for finding there to be no responses. The Request for Admissions was propounded via email, though they were also mailed. However, Plaintiff claims the date of service as the date of the email to calculate the date responses were due, not the extended date based on mail service. The court also notes there was no meet and confer as required regarding the issue, as email is not sufficient. As Plaintiff has relied on its’ service via email for the basis for its’ claims in this motion, it cannot rely on email service in response as a fatal flaw.

Code of Civil Procedure § 2033.280 addresses the failure to respond to requests for admissions:

If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter

4 (commencing with [Section 2018.010](#)). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with [Sections 2033.210, 2033.220, and 2033.230](#).

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with [Section 2023.010](#)).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with [Section 2033.220](#). It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with [Section 2023.010](#)) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.

The court finds that responses to Plaintiff's Request for Admission were timely and any administrative errors in the document does not require the court to find otherwise. The court denies the motion to deem request for admissions admitted.

As the court has denied the motion any request for sanctions is moot.

TENTATIVE RULING #8: DEFENDANT'S MOTION TO DEEM ADMITTED THE MATTERS SPECIFIED IN THE REQUESTS FOR ADMISSION IS DENIED.

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5.	PC20200201	JOSEF DULLER ET AL VS GABRIELE MCINNIS ET AL
MOTION FOR NUNC PRO TUNC ENTRY OF JUDGMENT		

Plaintiffs file this motion for nunc pro tunc entry of judgement. They maintain the clerk of the court failed to enter judgement following the court's ruling on October 9, 2025.

A judgment is the final determination of the rights of the parties (Code Civ. Proc., § 577) “ „when it terminates the litigation between the parties on the merits of the case and leaves nothing to be done but to enforce by execution what has been determined.” ” (*Sullivan v. Delta Air Lines, Inc.* (1997) 15 Cal.4th 288, 304, quoting *Doudell v. Shoo* (1911) 159 Cal. 448, 453.) “ „It is not the form of the decree but the substance and effect of the adjudication which is determinative. As a general test, which must be adapted to the particular circumstances of the individual case, it may be said that where no issue is left for future consideration except the fact of compliance or noncompliance with the terms of the first decree, that decree is final, but where anything further in the nature of judicial action on the part of the court is essential to a final determination of the rights of the parties, the decree is interlocutory.” ” (*Griset v. Fair Political Practices Com.* (2001) 25 Cal.4th 688, 698, italics added, quoting *Lyons v. Goss* (1942) 19 Cal.2d 659, 670.)

In this matter, parties agree the court issued its' Ruling on Submitted Matter on October 9, 2025. The ruling adjudicated the merits of the case, made orders awarding damages, and awarded attorney fees. The court left no issue on the merits of the case unresolved. On October 31, 2025, the court responded to Plaintiffs' request for a statement of decision by confirming that the Ruling on Submitted Matter dated October 9, was the FINAL determination and not a tentative ruling and as a result, no statement of decision was required. Both the ruling and response to the request for a statement of decision were served by the court on the parties. As such, the court did enter judgement as required and the motion for nunc pro tunc entry of judgement is denied.

TENTATIVE RULING #5: THE MOTION PRO TUNC ENTRY OF JUDGMENT IS DENIED.

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6.	23CV1998	Eli Brunius, an individual vs. Michael N. Miller, Jr., an individual
Motion to Dismiss		

Defendants filed this motion to dismiss on March 20, 2026 based on Plaintiff's failure to communicate or respond to any attempted communication since August of 2024. The last communication from Plaintiff was a text message in which her purportedly claimed he had asked his prior counsel to dismiss the action. There has been no further communication with the Plaintiff nor any further filings with the court from Plaintiff. Proof of service of the motion was filed with the court establishing service via mail on March 24, 2026. No opposition has been filed. The court grants the motion to dismiss.

TENTATIVE RULING #6: THE MOTION TO DISMISS IS GRANTED.

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7.	25CV1907	RUTH HAYNES ET AL vs. ASHLEY SPENCER ET AL
MOTION FOR TRIAL PREFERENCE		

Plaintiff filed this motion for trial preference pursuant to CCP § 36 which states

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

Defendant's opposition disputes only whether the health of the Plaintiff is such that a preference is necessary to prevent prejudice. The court finds Plaintiff has sufficiently established the health of the Plaintiff requires preference based on the nature of the injury in combination with the age of the Plaintiff.

TENTATIVE RULING #7: APPEARANCES REQUIRED FRIDAY, MAY 29, 2026, AT 8:30 AM IN DEPARTMENT NINE.

8.	24CV1621	WATERMARK ON THE LAKE HOMEOWNERS' ASSOCIATION VS. JUNKO BRADLEY
DEMURRER/MOTION TO DISMISS/MOTION FOR SUMMARY JUDGEMENT		

Defendant files this motion which asserts to be multiple different motions simultaneously. As to any request to dismiss and or demurrer, these issues are either moot by virtue of the court's granting Plaintiff's motion for Summary Judgement or the motions are not available to the party for the purposes of the cross complaint.

SUMMARY JUDGEMENT/SUMMARY ADJUDICATION

"The first step in analyzing a motion for summary judgment is to identify the issues framed by the pleadings. It is these allegations to which the motion must respond by showing there is no factual basis for relief or defense on any theory reasonably contemplated by the opponent's pleading. (Citations omitted.)" (6 Witkin, California Procedure (5th ed. 2008) Proceedings Without Trial, § 212, page 650.)

"For purposes of motions for summary judgment and summary adjudication: (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto..." (*Code of Civil Procedure*, § 437c(p)(1).)

The moving party bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. "In moving for summary judgment, a 'plaintiff ... has met' his 'burden of showing that there is no defense to a cause of action if' he 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.'" (*Law Offices of Dixon R. Howell v. Valley* (2005) 129 Cal.App.4th 1076, 1091-1092.)

The California Practice Guide, Civil Procedure Before Trial cites Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, for the proposition that the court has the discretion to deny the motion if there remains a triable issue of material fact as to any fact that the moving party contends is a material fact in the separate statement.

“Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for [summary adjudication] and summary judgment to determine quickly and efficiently whether material facts are undisputed.” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335, 282 Cal.Rptr. 368.) The separate statement “provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.” (*Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74, 50 Cal.Rptr.3d 149.)

The supporting papers shall include a separate statement setting forth plainly and concisely all material facts which the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denial of the motion.” (Code of Civil Procedure, § 437c(b)(1).)

In this matter, no code complaint separate statement was provided by the moving party. The documents attached to the motion provided 12 pages of facts which often acknowledge disputes by referring to them as lies by the other party and 82 pages of documents which include correspondence with evidence of the disputes between the parties in which each maintain different versions of the same facts (i.e. whether there was disparate treatment of homeowners as one example).

As the court finds there are multiple material disputes in fact and the separate statement is not compliant with the code as it fails to establish what if any undisputed facts exist, the motion for summary judgement and or summary adjudication is denied.

TENTATIVE RULING #8: MOTION FOR SUMMARY JUDGEMENT AND/OR SUMMARY ADJUDICATION IS DENIED.

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9.	PC20200294	ALL ABOUT EQUINE ANIMAL RESCUE V. ALEXANDER BYRD
DEMURRER		

On the court's own motion, this matter is continued to July 3, 2026 at 8:30am.

TENTATIVE RULING #9: MATTER IS CONTINUED TO JULY 3, 2026 AT 8:30AM

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10.	25CV0195	JODY GROVES VS. DIANE GEE ET AL
DEMURRER/REQUEST FOR JUDICIAL NOTICE		

REQUEST FOR JUDICIAL NOTICE:

Defendant requests the court take Judicial notice of 2 documents: the deed of trust and the release of mechanics lien. The court grants the requests.

DEMURRER:

Standard of Review

A demurrer tests the sufficiency of a complaint by raising questions of law. (*Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 20, 223 Cal.Rptr. 806.) In determining the merits of a demurrer, all material facts pleaded in the complaint and those that arise by reasonable implication, but not conclusions of fact or law, are deemed admitted by the demurring party. (*Moore v. Conliffe, supra*, 7 Cal.4th at p. 638, 29 Cal.Rptr.2d 152, 871 P.2d 204; *Interinsurance Exchange v. Narula, supra*, 33 Cal.App.4th at p. 1143, 39 Cal.Rptr.2d 752.) The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (*Flynn v. Higham* (1983) 149 Cal.App.3d 677, 679, 197 Cal.Rptr. 145.)

In addition to the facts actually pleaded, the court considers facts of which it may or must take judicial notice. *Cantu v. Resolution Trust Corp.*, 4 Cal.App.4th 857, 877 (1992).

A demurrer raises only issues of law, not fact, regarding the form and content of the pleadings of the opposing party. Cal. Civ. Pro. §§ 422.10 and 589. It is not the function of the demurrer to challenge the truthfulness of the complaint, instead, for the purposes of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts in the pleading but not contentions, deductions or conclusions of fact or law. *Aubry v. Tri-City Hosp. Dist.*, 2 Cal. 4th 962, 966-967 (1992); *Serrano v. Priest*, 5 Cal. 3d 584 (1971); *Adelman v. Associated Int'l Ins. Co.*, 90 Cal. App. 4th 352, 359 (2001). A demurrer can only challenge defects that appear on the face of the pleading and other matters that are judicially noticeable, the challenging party cannot make allegations of fact to the contrary. *Blank v. Kirwan*, 39 Cal. 3d 311, 318 (1985); *Donabedian v. Mercury Ins. Co.*, 116 Cal. App. 4th 968 (2004); *Harboring Villas Homeowners Assn. v. Sup. Ct.*, 63 Cal. App. 4th 426 (1998). For that reason, "[t]he hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable." *Fremont Indemnity Co. v. Fremont General Corp.*, 148 Cal. App. 4th 97, 114 (2007).

Failure to plead the ultimate facts supporting a cause of action subjects the complaint to a demurrer. Cal. Civ. Pro. § 430.10(e); *Berger v. Cal. Ins. Guar. Ass'n*, 128 Cal. App. 4th 989, 1006 (2005). "To determine whether a cause of action is stated, the appropriate question is whether, upon a consideration of all the facts alleged, it appears that the plaintiff is entitled to any judicial relief against the defendant, notwithstanding that the facts may not be clearly stated, or may be

intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” *Elliot v. City of Pacific Grove*, 54 Cal. App. 3d 53, 56. Otherwise stated, the demurrer is to be overruled if the allegations of the complaint are sufficient to state a cause of action under any legal theory. *Brousseau v. Jarrett*, 73 Cal. App. 3d 864 (1977); see also *Nguyen v. Scott*, 206 Cal. App. 3d 725 (1988). ‘

Plaintiff has not responded to Umpqua Bank’s demurrer motion.

Defendant maintains there is not a cause of action which states a claim as Defendant is not a party to any contract nor has been assigned any rights which create a duty to Plaintiff for purpose of any breach of contract or quantum meruit claim. The court agrees. Defendant has no rights nor has entered into any agreements with Plaintiff. Defendant’s agreement with the homeowners’ functions to secure the loan made to the homeowners for the construction project. It does not provide any rights or obligations to Defendant as it relates to Plaintiff. For those reasons the court will sustain the demurrer as to cause of action 1 and 2.

The cause of action for foreclosure of mechanics lien also fails. Plaintiff has provided no facts to dispute the foreclosure filing is barred. Additionally, Plaintiff having released the lien has the effect of demonstrating the lien is not enforceable and cannot now be foreclosed on.

As Plaintiff has not responded to the demurrer and for the reasons stated, the court will sustain the demurrer without leave to amend.

TENTATIVE RULING #10: DEMURRER IS SUSTAINED WITHOUT LEAVE TO AMANED.

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